

HOUSE No. 611**The Commonwealth of Massachusetts**

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to emergency stock epinephrine in schools.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/15/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/28/2025</i>
<i>Alyson M. Sullivan-Almeida</i>	<i>7th Plymouth</i>	<i>2/11/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>3/30/2025</i>
<i>Christopher Richard Flanagan</i>	<i>1st Barnstable</i>	<i>3/31/2025</i>
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>4/10/2025</i>
<i>Marc T. Lombardo</i>	<i>22nd Middlesex</i>	<i>4/15/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>4/15/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>4/15/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>4/17/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>4/22/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>5/5/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>5/5/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>5/5/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>5/16/2025</i>

<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>6/24/2025</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>7/2/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>7/24/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>7/24/2025</i>

HOUSE No. 611

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 611) of Bradley H. Jones, Jr., and others that schools be required to maintain non-patient specific epinephrine auto-injectors to be used in the event of anaphylactic emergencies. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 507 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to emergency stock epinephrine in schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 54B of chapter 71 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking the third paragraph and inserting in place thereof
3 the following:—

4 Notwithstanding any general or special law or regulation to the contrary, each school
5 shall maintain a stock supply of non-patient specific epinephrine to be administered in the event
6 of an anaphylactic emergency. The department of public health shall promulgate regulations
7 requiring school districts to adopt and implement policies pursuant to this section. Such
8 regulations shall require that stock epinephrine be stored in an easily accessible unlocked
9 location, the number and type of epinephrine auto-injectors required be based on school
10 population, that the individuals authorized to administer epinephrine meet certain training

11 requirements for such administration, and that the stock inventory be checked at regular intervals
12 for expiration and replacement. A school nurse or other authorized individual who provides,
13 administers, or assists in the administration of epinephrine to a student believed in good faith to
14 be having an anaphylactic reaction shall not be liable for any civil damages for negligence in acts
15 or omissions resulting from the rendering of such treatment. Whenever any employee of a school
16 district is covered by the immunity granted herein, the school district employing the individual
17 shall not be liable for any civil damages for negligence in acts or omissions resulting from the
18 rendering of such treatment.

19 SECTION 2. Notwithstanding any general or special law to the contrary, the department
20 of public health in conjunction with the department of elementary and secondary education shall
21 make all reasonable efforts to obtain federal funding or reimbursement for the implementation of
22 this act. The department of public health in conjunction with the department of elementary and
23 secondary education shall inquire about free epinephrine from pharmaceutical companies.